

25PSCV03850 25PSCV03850

County: los-angeles

Division: Civil Law and Motion

Department: 6

Hearing date: 2026-08-04

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CIT%2C6%2C08%2F04%2F2026

Source SHA-256: 90f9a2d1e064517438f551ea3ea5c923d1aadb244aff7b42e7e63b21f553a8f4

Case Number: 25PSCV03850 Hearing Date: August 4, 2026 Dept: 6

CASE NAME: Maria Del Carmen Estrada v. Christine Kfoury, et al.

Defendant Upland Chamber of Commerce's Demurrer to Plaintiff's Third Cause of Action for Gross Negligence in First Amended Complaint

TENTATIVE RULING

The Court SUSTAINS Defendant Upland Chamber of Commerce's Demurrer to Plaintiff's Third Cause of Action for Gross Negligence in First Amended Complaint with 20 days' leave to amend to incorporate or allege any facts showing gross negligence into the Second Cause of Action against Defendant Chamber.

Defendant Upland Chamber of Commerce is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a personal injury case. On October 24, 2025, plaintiff Maria Del Carmen Estrada (Plaintiff) filed this action against defendants Christine Kfoury (Kfoury), Upland Chamber of Commerce (Chamber), City of San Dimas (City) (collectively, Defendants) and Does 1 to 100, alleging causes of action for negligence (two counts), gross negligence, and dangerous condition of public property.

On April 2, 2026, after the Court sustained City's demurrer to the Fourth Cause of Action of Plaintiff's Complaint, Plaintiff filed the operative First Amended Complaint (FAC), alleging the same four causes of action and naming the same Defendants. On the same date, Plaintiff dismissed City without prejudice.

On June 26, 2026, Defendant Chamber demurred to the FAC. On July 22, 2026, Plaintiff opposed Chamber's Demurrer. On July 28, 2026, Chamber replied to Plaintiff's Opposition.

LEGAL STANDARD

A demurrer is a pleading used to test the legal sufficiency of other pleadings. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading (complaint, answer or cross-complaint). (Code Civ. Proc., § 422.10; see

Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 (Donabedian).) It is not the function of the demurrer to challenge the truthfulness of the complaint; and for purposes of ruling on the demurrer, all facts pleaded in the complaint are assumed to be true. (Id. at pp. 993-994.)

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318; Donabedian, supra, 116 Cal.App.4th at p. 994.) No other extrinsic evidence can be considered. (Ion Equip. Corp. v. Nelson (1980) 110 Cal.App.3d 868, 881 [error for court to consider facts asserted in memorandum supporting demurrer]; see also Afuso v. United States Fid. & Guar. Co. (1985) 169 Cal.App.3d 859, 862, disapproved on other grounds in Moradi-Shalal v. Fireman's Fund Ins. Cos. (1988) 46 Cal.3d 287 [error to consider contents of release not part of court record].)

A demurrer can be utilized where the "face of the complaint" itself is incomplete or discloses some defense that would bar recovery. (Guardian North Bay, Inc. v. Superior Court (2001) 94 Cal.App.4th 963, 971-972.) The "face of the complaint" includes material contained in attached exhibits that are incorporated by reference into the complaint, or in a superseded complaint in the same action. (Frantz v. Blackwell (1987) 189 Cal.App.3d 91, 94; see also Barnett v. Fireman's Fund Ins. Co. (2001) 90 Cal.App.4th 500, 505 ["[W]e rely on and accept as true the contents of the exhibits and treat as surplusage the pleader's allegations as to the legal effect of the exhibits"].)

A demurrer can only be sustained when it disposes of an entire pleading, cause of action, or affirmative defense. (See Cal. Rules of Court, rule 3.1320, subd. (a); Poizner v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119; Kong v. City of Hawaiian Gardens Redev. Agency (2003) 108 Cal.App.4th 1028, 1046-1047.)

PRELIMINARY ISSUES

Plaintiff's Opposition correctly argues Chamber's Demurrer is untimely since it was filed more than 30 days after service of the FAC. (Code Civ. Proc., §§ 430.40, subd. (a); 471.5, subd. (a).) But, Plaintiff presented no evidence of prejudice. (See Opp., 4:3-16.) Nevertheless, the Court retains discretion to consider a late-filed demurrer. (See Jackson v. Doe (2011) 192 Cal.App.4th 742, 749.) The Court therefore exercises its discretion to consider the Demurrer, but nevertheless admonishes Defendant Chamber to comply with the Code of Civil Procedure going forward.

Plaintiff's Opposition appears to attribute the quotation "might give rise to any different amount or form of liability, or indicate the existence of any defense or ground for avoiding liability, not reasonably disclosed in the original complaint" to the case Gray v. Hall (1928) 203 Cal. 306, but the Court found no such quotation in that case. (Opp., 7:15-18.) Plaintiff's Opposition also appears to attribute the quotation "second bite at the apple" to Carrasco v. Craft (1985) 164 Cal.App.3d 796 and Ammari v. Ammari (2025) 117 Cal.App.5th 483, neither of which contain that quotation. The Court will discuss these further with Plaintiff's counsel at the hearing on the Demurrer.

Chamber's Demurrer cites a case the Court could not find, i.e., Erickson v. Pacific Gulf Marine, Inc. (1992) 7 Cal.App.4th 1048. (Demurrer, 5:1-3.) The citation provided leads to a case entitled People v. Clark (1992) 7 Cal.App.4th 1041, which is a criminal case and has nothing to do with demurrers. The only other similarly named case the Court could find is Erickson v. Marine Group LLC (2011) 2011 WL 1601465, which is not a published case and therefore not citable. (Cal. Rules of Court, rule 8.1115, subd. (a).) Chamber's Reply also misquotes Jimenez v. 24 Hour Fitness USA, Inc. (2015) 237 Cal.App.4th 546. Specifically, Chamber's Reply reads, "California does not recognize a distinct common law cause of action for gross negligence independent of a statutory basis." (Reply, 4:5-7, bold added.) The actual language from the case reads, "California does not recognize a distinct common law cause of action for gross negligence apart from negligence. [Citations.]" (Jimenez v. 24 Hour Fitness USA, Inc., supra, 237 Cal.App.4th at p. 552, fn. 3, bold added.) Chamber's Reply further misquotes from Blank v. Kirwan 1985) 39 Cal.3d 311, (Reply, 3:15-16), and makes an improper attribution to Code of Civil Procedure section 430.80, subdivision (a), (Reply, 2:13-14). The Court will discuss these issues with Chamber's counsel at the hearing on the Demurrer.

DISCUSSION

Meet and Confer

The Court finds Chamber's efforts to meet and confer before bringing this Demurrer sufficient. (Wasser Decl., ¶ 3; Code Civ. Proc., § 430.41, subd. (a).)

Third Cause of Action – Gross Negligence

"Gross negligence is pleaded by alleging the traditional elements of negligence: duty, breach, causation, and damages. [Citation.] However, to set forth a claim for 'gross negligence' the plaintiff must also allege conduct by the defendant involving either 'want of even scant care' or 'an extreme departure from the ordinary standard of conduct.'" (Chavez v. 24 Hour Fitness USA, Inc. (2015) 238 Cal.App.4th 632, 640 [internal quotations omitted].)

Defendant Upland Chamber of Commerce demurs to the Third Cause of Action for gross negligence on the ground that it fails to state facts sufficient to constitute a cause of action. Chamber contends the claim merely repackages the same omissions pleaded as ordinary negligence, such as failure to plan a safe route, coordinate traffic control, implement safety measures, and warn participants, and adds only the conclusory label that the conduct was an "extreme departure from the ordinary standard of care." Chamber argues the allegations show, at most, a logistical judgment call and do not plead a want of even scant care or an extreme departure, reasoning that failing to coordinate closures with a second municipality is no more egregious than failing to coordinate with the first. Chamber further contends the Third Cause of Action is duplicative of the Second Cause of Action, relying on the same facts and seeking identical damages. Chamber also argues that gross negligence is not an independent cause of action.

In opposition, Plaintiff argues the Third Cause of Action pleads distinct new facts absent from the Second Cause of Action, specifically that Chamber secured street closures in one city but failed to do so in San Dimas, knew or should have known this created a high risk of serious injury, and failed to take even minimal precautions. Plaintiff characterizes this as reckless conduct that created a false illusion of safety before abandoning participants mid-route, amounting to both a want of even scant care and an extreme departure from the ordinary standard of care. Plaintiff contends the claim is not duplicative because gross negligence may be pleaded in the alternative and invokes a distinct culpability standard, preserving a theory of liability capable of surviving affirmative defenses such as a liability waiver or primary assumption of risk.

In reply, Chamber contends that its Demurrer is properly before the Court, arguing that a failure to state a cause of action is never waived and may be raised at any time under Code of Civil Procedure section 430.80, subdivision (a), that the Court has discretion to consider a late-filed demurrer absent prejudice, and that the First Amended Complaint superseded the original pleading so no improper "second bite" occurred. Chamber reiterates its argument that the Third Cause of Action does not allege new operative facts and merely restates the ordinary negligence theory with conclusory labels, that gross negligence is not an independent cause of action, and that this claim is duplicative of the Second Cause of Action for negligence.

The Court finds the FAC fails to allege facts sufficient to state a cause of action. California does not recognize a distinct common law cause of action for gross negligence apart from negligence. (See Saenz v. Whitewater Voyages (1990) 226 Cal.App.3d 758, 766, fn. 9 ["California does not recognize a distinct cause of action for 'gross negligence' independent of a statutory basis"]; Ordway v. Superior Court (1988) 198 Cal.App.3d 98, 108, fn. 5 ["'gross' negligence is merely the same thing as ordinary negligence...."]; Jimenez v. 24 Hour Fitness USA, Inc. (2015) 237 Cal.App.4th 546, 552, fn. 3; Eriksson v. Nunnink (2011) 191 Cal.App.4th 826, 856, fn. 18 ["[i]n reality, California does not recognize a distinct cause of action for 'gross negligence' independent of a statutory basis"]; see also Continental Ins. Co. v. American Protection Industries (1987) 197 Cal.App.3d 322, 330 [holding gross negligence is not necessarily a separate cause of action from ordinary negligence].) Rather, gross negligence is a degree of negligence, which is pleaded by alleging the traditional elements of negligence: duty, breach, causation, and damages- and extreme conduct on the part of the defendant. (Van Meter v. Bent Const. Co. (1956) 46 Cal.2d 588, 594-95; Rosencrans v. Dover Images, Ltd. (2011) 192 Cal.App.4th 1072, 1082.)

Here, the FAC's Third Cause of Action for gross negligence is not a distinct cause of action. The Second cause of action for negligence and Third cause of action for gross negligence are based on the same general allegations. (FAC, ¶¶ 37-62.)

While there is a distinction between negligence and gross negligence, there is no separate cause of action for gross negligence in California. (Jimenez, 237 Cal.App.4th at 552, fn. 3; Eriksson, 191 Cal.App.4th at 856, fn. 18.)

Because there is no statutory basis to support a distinct cause of action for gross negligence in the circumstances alleged here, the demurrer to the Third Cause of Action is sustained.

While gross negligence is not a separate cause of action, there are circumstances in which the distinction between ordinary and gross negligence is relevant. For example, in *City of Santa Barbara v. Superior Court* (2007) 41 Cal.4th 747, the Court noted:

[I]n the context of primary assumption of risk (that is, liability of active sports coparticipants for injuries arising from the normal conduct of the sport), the absence of a duty to protect against ordinary negligence does not absolve a defendant from liability based upon reckless conduct.

Similarly, in the present situation, it cannot be said that a legal distinction between ordinary negligence and gross negligence is "unnecessary"—indeed, a theory of gross negligence, if supported by evidence showing the existence of a triable issue, is the only negligence-based theory that is potentially open to plaintiffs and real parties in interest.

(*Santa Barbara*, supra, 41 Cal.4th at 782.)

Here, it is not clear to the Court whether similar circumstances exist in this case. However, Plaintiff is granted 20 days leave to amend to incorporate or allege any facts showing gross negligence into the Second Cause of Action against Defendant Chamber.

Based on the foregoing, the Court SUSTAINS the Demurrer to the Third Cause of Action with 20 days' leave to amend to incorporate or allege any facts showing gross negligence into the Second Cause of Action against Defendant Chamber..

CONCLUSION

The Court SUSTAINS Defendant Upland Chamber of Commerce's Demurrer to Plaintiff's Third Cause of Action for Gross Negligence in First Amended Complaint with 20 days' leave to amend to incorporate or allege any facts showing gross negligence into the Second Cause of Action against Defendant Chamber.

Defendant Upland Chamber of Commerce is ordered to give notice of the Court's ruling within five calendar days of this order.